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PART 1229—EMERGENCY AUTHORIZATION TO DESTROY RECORDS

Authority: 44 U.S.C. 3310 and 3311.

Source: 74 FR 51014, Oct. 2, 2009, unless otherwise noted.

§ 1229.1 What is the scope of this part?

This part describes certain conditions under which records may be destroyed without regard to the provisions of [part 1226 of this subchapter](#).

§ 1229.2 What are the authorities for this part?

The statutory authorities for this part are 44 U.S.C. 3310 and 3311.

§ 1229.3 What definitions apply to this part?

See [§ 1220.18 of this subchapter](#) for definitions of terms used in part 1229.

§ 1229.10 What steps must be taken when records are a continuing menace to health or life, or to property?

When NARA and the agency that has custody of them jointly determine that records in the custody of an agency of the U.S. Government are a continuing menace to human health or life, or to property, NARA will authorize the agency to eliminate the menace immediately by any method necessary:

- (a) When an agency identifies records that pose a continuing menace to human health or life, or to property, the records officer or other designee must immediately notify NARA, by mail at National Archives and Records Administration; Office of the Chief Records Officer (ACR) 8601 Adelphi Road; College Park, MD 20740-6001, or by email at

RM.Communication@nara.gov. The notice must describe the records, their location and quantity, and the nature of the menace.

- (b) If NARA concurs in a determination that the records must be destroyed, NARA will notify the agency to immediately destroy the records.
- (c) If NARA does not concur that the menace must be eliminated by destruction of the records, NARA will advise the agency on remedial action to address the menace.

[74 FR 51014, Oct. 2, 2009, as amended at 83 FR 13654, Mar. 30, 2018]

§ 1229.12 What are the requirements during a state of war or threatened war?

- (a) Destruction of records outside the territorial limits of the continental United States is authorized whenever, during a state of war between the United States and any other nation or when hostile action appears imminent, the head of the agency that has custody of the records determines that their retention would be prejudicial to the interest of the United States, or that they occupy space urgently needed for military purposes and are without sufficient administrative, fiscal, legal, historical, or other value to warrant their continued preservation.
- (b) Within six months after the destruction of any records under this authorization, the agency official who directed the destruction must submit to NARA, by mail at National Archives and Records Administration; Office of the Chief Records Officer (AC); 8601 Adelphi Road; College Park, MD 20740-6001, or by email at RM.Communications@nara.gov, a written statement explaining the reasons for the destruction and a description of the records and how, when, and where the destruction was accomplished.

[74 FR 51014, Oct. 2, 2009, as amended at 83 FR 13654, Mar. 30, 2018]

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